



Care Worker Mental Health Rights & Wellbeing Checklist

25 things every care worker deserves to know - and most employers never tell you.

FREE RESOURCE from Yeukai Kajidori - Mental Health Consultant - 20 Years in Health & Social Care

This checklist is for you - the carer who shows up every day, gives everything, and often feels like nobody is looking out for you. These are your rights. Know them. Use them. Share them.

SECTION 1: Your Mental Health Rights at Work

Under UK employment law and the Health and Safety at Work Act 1974, your employer has a legal duty to protect your mental health. Here is what that means in practice:

- ☐ **Right to a mental health risk assessment**
Your employer must assess the mental health risks of your role - lone working, emotional labour, violence risk - and act on them.
- ☐ **Right to reasonable adjustments**
If you have a mental health condition (including anxiety, depression, PTSD), your employer must make reasonable adjustments under the Equality Act 2010.
- ☐ **Right to report without fear of retaliation**
Raising a mental health concern is a protected act. Your employer cannot dismiss or discipline you for it.
- ☐ **Right to access an Employee Assistance Programme (EAP)**
Many employers are required to provide free, confidential counselling. Ask your manager or HR if you have access.
- ☐ **Right to a safe working environment**
This includes psychological safety - you should not be bullied, harassed, or made to feel unsafe by colleagues or service users without your employer acting.
- ☐ **Right to sick leave for mental health**
Mental health sick leave is the same as physical sick leave. You cannot be penalised for taking it.
- ☐ **Right to request flexible working**
After 26 weeks of employment, you have the right to request flexible working arrangements. Your employer must consider it seriously.

SECTION 2: Wellbeing at Work - What Good Looks Like

Use this section to assess your current workplace. Tick what is already in place. Highlight what is missing and raise it with your manager.

- ☐ **Regular supervision (at least monthly)**
Not just task-focused - genuine check-ins on how you are doing emotionally.
- ☐ **A clear process for reporting concerns**
You know exactly who to go to and what happens when you raise a concern.
- ☐ **Access to a mental health first aider**
Your workplace has a trained mental health first aider you can approach confidentially.
- ☐ **Breaks that are actually taken**
You are not regularly skipping breaks due to workload or staffing pressures.
- ☐ **A debrief process after difficult incidents**



After a challenging situation (death, violence, emotional crisis), there is a structured debrief.

☐

Recognition for your work

Your contributions are acknowledged - not just when things go wrong.

☐

A manageable caseload

You are not consistently carrying more than you can safely manage.

☐

Peer support or a buddy system

You have a colleague you can talk to informally when things are hard.



SECTION 3: Signs Your Mental Health Needs Attention

Compassion fatigue and burnout are occupational hazards in care. These are early warning signs - not weaknesses. If you are experiencing three or more of these regularly, please seek support.

- ☐ You dread going to work most days
- ☐ You feel emotionally numb or detached from the people you care for
- ☐ You are sleeping poorly or feeling exhausted even after rest
- ☐ Small things at work feel overwhelming
- ☐ You are irritable or short-tempered with colleagues or service users
- ☐ You feel like nothing you do makes a difference
- ☐ You are using alcohol, food, or other things to cope after shifts
- ☐ You have stopped talking about work - even to people close to you
- ☐ You feel guilty for not doing more, even when you have given everything
- ☐ You are thinking about leaving the sector entirely

If you are experiencing a mental health crisis, please contact:

Samaritans: 116 123 (free, 24/7) | Mind: 0300 123 3393 | Crisis text line: Text SHOUT to 85258

SECTION 4: Your Career Rights and Development

You have the right to grow. These are the career rights that too many care workers do not know about:

- ☐ **Right to training and development**
Your employer must provide mandatory training. You also have the right to request additional development opportunities.
- ☐ **Right to a fair pay review**
You should receive a regular pay review. The National Living Wage is the legal minimum - not the target.
- ☐ **Right to a written statement of employment**
From day one, you are entitled to a written statement of your terms and conditions.
- ☐ **Right to join a trade union**
You have the right to join UNISON, GMB, or another union and be represented by them at disciplinary hearings.
- ☐ **Right to not be discriminated against**
Age, race, gender, disability, religion, sexual orientation - all protected characteristics under the Equality Act 2010.
- ☐ **Right to a reference**
Your employer cannot withhold a reference or give a deliberately misleading one.

SECTION 5: What to Do If Your Rights Are Being Ignored

Step 1: Document everything. Dates, times, what was said, who was present. Keep a personal log.

Step 2: Raise it informally first. Speak to your line manager or a trusted senior colleague.

Step 3: If that does not work, raise a formal grievance. Your employer must follow the ACAS Code of Practice.

Step 4: Contact your union representative if you have one. They can accompany you to meetings.

Step 5: If the issue involves abuse, neglect, or serious harm, you can raise a concern with the CQC directly at [cqc.org.uk](https://www.cqc.org.uk) or call 03000 616161.



Want to Go Deeper?

Yeukai Kajidori is a mental health consultant with 20 years in health and social care. She works with care workers, teams, and organisations to build mentally healthy workplaces.

If this checklist resonated with you, book a free 20-minute conversation:

Book Your Free Call: <https://tfft.io/WLF0m6F>

Follow @yeukaik on Instagram for weekly tips on mental health, rights, and career growth in care.

Comment CHECKLIST on any post to receive this guide directly in your DMs.